

Before the
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-01

Visual Comfort & Co. v. COSCO Shipping Lines Co. LTD.

THIRD JOINT STATUS REPORT AND REQUEST FOR EXTENSION

Complainant Visual Comfort & Co. (“Complainant” or VCC”) and Respondent COSCO Shipping Lines Co. LTD (“Respondent” or “COSCO”) (collectively the “Parties”) submit this Third Joint Status Report, pursuant to the Presiding Officer’s Order dated April 30, 2024, and state as follows:

The Parties exchanged Initial Disclosures on March 11, 2024. Respondent filed a Motion for Partial Judgment on the Pleadings on March 20, 2024. The Parties exchanged initial discovery requests on March 27, 2024 and objections and responses on April 26, 2024. Complainant identified its expert witness and served supplemental discovery requests on April 15, 2024.

Although the Parties each served objections and responses to the initial discovery requests, neither Party has yet produced any documents. This is due in part to the Parties failure thus far to agree on a confidentiality agreement and Proposed Consent Motion for a Protective Order. The remaining area of disagreement is small, and the Parties will continue working to avoid the necessity of bringing the dispute to the Presiding Officer. It is also due in part to each Party’s objections to the discovery requests of the other Party. The Parties will attempt to resolve or narrow their differences but may need to bring some of

them to the attention of the Presiding Officer.

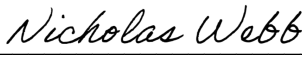
The need to resolve discovery issues means that the Parties are behind schedule, including as to the report from Complainant's expert, currently due May 17, 2024.

Accordingly, to enable the Parties to resolve these issues with a minimum of intervention from the Presiding Officer, the Parties jointly request that the current schedule be adjusted to the following:

Parties to produce documents and data responsive to the initial discovery requests	June 3, 2024
Depositions of fact witnesses may begin to be noticed	June 17, 2024
Complainant to serve initial expert reports, if any	July 1, 2024
Respondent to identify rebuttal expert witnesses, if any	July 8, 2024
Expert depositions may begin to be noticed, if any	July 19, 2024
Respondent to serve rebuttal expert reports, if any	July 31, 2024
Last date to serve supplemental written discovery requests	August 7, 2024
Parties to serve objections and responses to supplemental written discovery requests	September 6, 2024
Complete Depositions of Fact and Expert Witnesses	September 7, 2024
Discovery ends	September 27, 2024
Complainant files brief, proposed findings of fact, and Appendix	October 25, 2024
Respondent files opposition brief, responses to proposed findings of fact, and Appendix	November 29, 2024
Complainant files reply brief and responses to proposed findings of fact.	December 20, 2024

Dated: May 10, 2024
Respectfully submitted,

By: /s/ 
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